

M/S Ex- Soldiers Mechanicals Works vs Union Of India And Others on 29 May, 2026

2026:UHC:4063

IN THE HIGH COURT OF UTTARAKHAND
AT NAINITAL
HON'BLE THE CHIEF JUSTICE SHRI MANOJ KUMAR GUPTA
29TH MAY, 2026
ARBITRATION APPLICATION No. 54 OF 2024

M/s Ex- Soldiers Mechanicals Works.
Versus

...Applicant

Union of India and others.
Counsel for the applicant.

...Respondents

: Mr. Aditya Pratap Singh, learned counsel,
learned counsel.
Counsel for the respondents. : Mr. Atul Bhatt, learned CGSC for the
Union of India.

JUDGMENT :

1. The present application has been filed under Section 11 of the Arbitration and Conciliation Act, 1996 for appointment of an Arbitrator for adjudicating the disputes between the parties arising out of work order dated 20.01.2017.

2. Learned counsel for the applicant submits that the respondents, in their counter affidavit, have admitted that the dispute falls within the scope of Arbitration Clause No. 17 under the General Conditions of Contract, and they have even stated that they are taking steps for appointment of an arbitrator. In support of the submission, he has placed reliance on paragraph no. 10 of the counter affidavit. Paragraph no. 10 of the counter affidavit is extracted below :-

"10. That the contents of paragraph no. 15 of the Arbitration Application are not admitted, hence denied and in reply thereto it is being submitted that as the contractor has already been issued with completion letter dated 27 Apr 2024 and due payment has been regularized, Invoking the arbitration clause by referring to clause/condition No 70 of IAFW-2249 is not justified. However, respondent No 3 has already initiated a 2026:UHC:4063 case for appointments of arbitrator vide AGE (I) Raiwala 8316/06/E8 dated 08 Jan 2025 and the direction from Higher authority is still awaited."

3. The counter affidavit was filed long back in February, 2025 and even after expiry of considerable time, the Arbitrator has not been appointed.

4. Learned counsel for the respondents submits that there has been change in the Policy, and now the Appointing Authority is Chief Engineer, Central Command, Lucknow, and it is for the said

reason that delay has occurred. He has no objection in case the Court appoints the Arbitrator.

5. Counsel for the parties have agreed that the venue of arbitration be at Dehradun.

6. In view of the above, the application is allowed. The Court proposes name of Shri Shankar Raj, (Retd.) District & Sessions Judge, residing at Dehradun, as Arbitrator for adjudicating the disputes between the parties. Let his consent and necessary disclosures, as per provisions of Section 11(8), be obtained by the Office within four weeks.

7. All pending applications stand disposed of accordingly.

_____ MANOJ KUMAR GUPTA, C.J.

Dt: 29th May, 2026 Rahul RAHUL DN: c=IN, o=HIGH COURT OF UTTARAKHAND, ou=HIGH COURT OF UTTARAKHAND, 2.5.4.20=aa4fa3bee6691397758b14516ed3e66e61bf4c848741983ed8c39e4145cf1dab, PRAJAPATI postalCode=263001, st=UTTARAKHAND, s e r i a l N u m b e r = 3 0 3 B 5 5 C C 3 0 6 3 D 3 4 A C 4 5 B F 8 A 1 9 2 F CAD15C390A1AAD7B39857D2540AE4C28A4898, cn=RAHUL PRAJAPATI Date: 2026.05.29 16:11:10 +05'30'